

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUBC063507: RICHARD BOGHOSIAN vs HYUNDAI MOTOR AMERICA, A
CORPORATION**

**08/17/2026 in Department 44
Motion to Compel Binding Arbitration**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoqs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant’s Motion to Compel Binding Arbitration

Tentative Ruling: Defendant’s Motion is GRANTED, and Plaintiff’s claims are ordered to arbitration on the following grounds: (1) HMA presented the written manufacturer-consumer arbitration provision and its terms; (2) Under the published and currently citable *Kostandian* decision, that satisfies HMA’s prima facie formation burden; (3) Plaintiff challenged formation only through attorney argument and presented no evidence disputing receipt, assent, warranty use, or failure to opt out; (4) The complaint itself alleges repeated presentations to HMA-authorized facilities under the express warranty; (5) The three causes of action fall expressly within the provision; and (6) Plaintiff has not carried his burden of establishing unconscionability.

Request for Judicial Notice

Defendant’s request for judicial notice of Plaintiff Richard Boghosian’s Complaint filed March 20, 2026 is GRANTED pursuant to Evidence Code § 452(d). Judicial notice is taken of the

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existence and contents of the Complaint, but not of the truth of disputed factual allegations contained therein.

Motion to Compel Arbitration

A party seeking to compel arbitration bears the initial burden of establishing the existence of an agreement to arbitrate. Once the moving party makes a prima facie showing by producing the agreement or reciting its terms, the burden shifts to the opposing party to produce evidence disputing formation. (*Kostandian v. American Honda Motor Co., Inc.* (2026) 120 Cal.App.5th 872; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165-166.) *Kostandian*, which was certified for publication on May 27, 2026, applied this burden-shifting framework to an arbitration provision contained in an automobile manufacturer's warranty booklet.

HMA satisfies its initial burden. It submitted the 2023 Owner's Handbook & Warranty Information applicable to Plaintiff's Hyundai, which contains a section entitled "BINDING ARBITRATION FOR CALIFORNIA VEHICLES ONLY." The provision states that disputes between a California purchaser and HMA concerning, among other things, the vehicle purchase, vehicle performance, service, warranty, unfair competition, breach of warranty, failure to conform the vehicle to warranty, failure to repurchase or replace the vehicle, and refund claims shall be resolved by binding arbitration at either party's election.

The provision further states that a California purchaser's warranty is subject to the arbitration provision and that, by using the vehicle or requesting or accepting benefits under the warranty, including warranty repairs, the purchaser agrees to be bound by its terms unless the purchaser opts out within 30 days.

Plaintiff argues that he never manifested assent to the arbitration provision and emphasizes that he did not sign it. However, Plaintiff submits no declaration or other evidence stating that he did not receive the warranty booklet, did not know of the arbitration provision, received it only after expiration of the opt-out period, or otherwise disputing the factual circumstances of formation. His opposition consists of attorney argument on those points. Under *Kostandian*, that is insufficient to satisfy Plaintiff's responsive burden of production. The Court of Appeal specifically held that once the manufacturer produced the warranty-booklet arbitration agreement and recited its terms, the consumer was required to produce evidence disputing its existence; unsupported assertions regarding receipt and assent did not suffice.

The record also contains evidence consistent with acceptance of warranty benefits. Plaintiff alleges that HMA provided express written warranties and that the vehicle's defects were presented multiple times to HMA's authorized repair facilities.

The Court therefore finds that HMA has established the existence of an agreement to arbitrate. The absence of Plaintiff's signature does not, standing alone, defeat formation on the record presented.

Plaintiff's reliance on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 does not require a different result. There, Ford sought to enforce arbitration provisions contained in separate sales

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contracts between consumers and dealerships to which Ford was not a party. The California Supreme Court held that the consumers' statutory manufacturer-warranty claims were not founded on the dealership sales contracts and therefore did not support nonsignatory equitable estoppel. Here, by contrast, HMA seeks to enforce the arbitration provision contained in HMA's own warranty agreement with the consumer. Accordingly, the Court need not rely on HMA's alternative equitable-estoppel theory to find an enforceable agreement.

The Federal Arbitration Act applies. The agreement expressly states that it evidences a transaction involving interstate commerce and shall be governed by the FAA. No exemption under section 1 of the FAA is implicated.

The Court also rejects Plaintiff's unconscionability defense. Although the standardized nature of the warranty may demonstrate some degree of procedural unconscionability, Plaintiff has not established substantial oppression or surprise. The table of contents identifies the binding-arbitration section, the section itself prominently warns that it affects the consumer's rights, and the agreement provides a 30-day opt-out procedure.

Nor has Plaintiff established substantive unconscionability. The agreement applies mutually, requires HMA to pay all arbitration fees except the initial \$200 filing fee, provides that arbitration will occur in the consumer's city or county, and permits either party to elect arbitration. Plaintiff's objections concerning the loss of a jury trial and the use of AAA arbitration do not demonstrate that the provision is unduly harsh or one-sided.

Plaintiff's claims also fall within the scope of the agreement. Plaintiff asserts causes of action for breach of express warranty under the Song-Beverly Consumer Warranty Act, breach of implied warranty, and violation of Business and Professions Code § 17200. The arbitration provision expressly encompasses claims concerning breach of warranty, failure to conform the vehicle to warranty, repurchase or replacement, refunds, and unfair competition.

Finally, Plaintiff's UCL prayer seeks, among other relief, an order requiring Defendant to refrain from further unfair business practices. To the extent that request qualifies as public injunctive relief under *McGill v. Citibank, N.A.* (2017) 2 Cal.5th 945, Plaintiff cannot be required to waive the right to seek that relief in every forum. The agreement itself accommodates that rule by providing that any request for public injunctive relief that cannot lawfully be arbitrated shall remain in court and be stayed pending arbitration of the arbitrable claims and remedies.

Order

Defendant Hyundai Motor America's Motion to Compel Binding Arbitration is GRANTED.

Plaintiff Richard Boghosian and Defendant Hyundai Motor America are ordered to submit Plaintiff's arbitrable claims to binding arbitration in accordance with the arbitration provision contained in HMA's Owner's Handbook & Warranty Information.

This action is STAYED pursuant to Code Civ. Proc. § 1281.4 pending completion of arbitration.

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To the extent Plaintiff seeks public injunctive relief that is nonwaivable under *McGill v. Citibank, N.A.* (2017) 2 Cal.5th 945, that request is not ordered to arbitration and is stayed pending completion of arbitration.

The Court sets a status conference re: Arbitration on **August 16, 2027 at 8:30 a.m.** The parties are ordered to file a joint status report at least 10 days prior to the status conference.

Defendant Hyundai Motor America to give notice.